

Court No. - 38

Case :- WRIT - C No. - 6149 of 2019

Petitioner :- Saurabh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kuldeep Kumar

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

Heard Sri Kuldeep Kumar, learned counsel for the petitioner and Sri Rajesh Kumar Sachan, learned counsel appearing for the respondent-Electricity Department.

By means of this writ petition, the petitioner is challenging the recovery citation dated 25.1.2019 for a sum of Rs. 9,54,970+ other charges. It is stated that the said amount that is being sought to be recovered as arrears of land revenue is the electricity dues along with allegation of electricity theft by the petitioner.

It appears that a provisional assessment has been made without calling for objection by the petitioner and also without fixing a date for hearing as provided under Clause 6.8(b) of the Electricity Supply Code, 2005. It further appears that the said provisional assessment has been treated to be final assessment. It is to be noted that the final assessment order has to be passed separately which has not been done.

Consequently, the writ petition is disposed of with a direction to respondent no.4, the Executive Engineer, Pashimanchal Vidyut Vitran Nigam Ltd. District Bulandshahar that in case the petitioner files his objection to the provisional assessment, the same be considered and an appropriate order be passed in accordance with law following the procedure prescribed under the Electricity Act as well as Electricity Code within a period of one month from the date a certified copy of this order is produced.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to citation dated 25.1.2019.

Order Date :- 22.2.2019

sfa/

(Jayant Banerji, J) (Abhinava Upadhya,J)